

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 18
JUDICIAL OFFICER: DANIELLE K DOUGLAS
HEARING DATE: 12/19/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued.

Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D18. Zoom is approved for all hearings except Issue Conferences and Trials. **Dept. 18's telephone number is: (925) 608-1118.**

NOTE: In order to minimize the risk of miscommunication, Dept. 18 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 18's email address is: dept18@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 18 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
*HEARING ON MOTION IN RE: DEMURRER TO 2ND AMENDED COMPLAINT
FILED BY: HARRIS, BRYANT
TENTATIVE RULING:

Hearing continued on motion of the court to January 9, 2026, at 9 a.m.

2. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
***HEARING ON MOTION IN RE: STRIKE PRAYER FROM 2ND AMENDED COMPLAINT**
FILED BY: HARRIS, BRYANT
TENTATIVE RULING:

Hearing continued on motion of the court to January 9, 2026, at 9 a.m.

3. 9:00 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS**
FILED BY: WIENER, SETH W,
TENTATIVE RULING:

Defendant Wiener requests that the court impose terminating sanctions against Plaintiff Wang for her repeated violations of this court's orders relating to discovery. The most glaring violation of a court order is Plaintiff's failure to appear at her scheduled deposition on September 18, 2025. The date of September 18, 2025, was scheduled in court on the record after Defendant's motion to compel deposition was granted. On August 29, 2025, Plaintiff had appeared at the court hearing for Defendant's motion to compel her deposition on Zoom. At that hearing the court gave Plaintiff three proposed deposition dates and allowed Plaintiff to select the date of the deposition from one of the three proposed dates. Even at the hearing Plaintiff was reluctant to commit to any date for her deposition. Not surprisingly, Plaintiff attempted to continue the deposition by filing an ex parte motion on the date her deposition was scheduled. Plaintiff then showed up on Zoom to her deposition late stating her equipment wasn't working. The court notes that every appearance Plaintiff has made in this case has been remotely by Zoom. The Court does not find it credible that Plaintiff's equipment conveniently failed on the date of the deposition.

Because Plaintiff's deposition is integral to the defense conducting discovery on all issues relating to the case evidentiary sanctions would not cure Plaintiff's refusal to appear for her deposition. Additionally, monetary sanctions have not deterred Plaintiff's abuse of the discovery process. Accordingly, the court issues terminating sanctions dismissing Plaintiff's case.

4. 9:00 AM CASE NUMBER: C23-00556
CASE NAME: JULIANA RECINO VS. TOTALMED STAFFING, INC., AN ILLINOIS LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE:**
FILED BY:
TENTATIVE RULING:

The court grants the motion for final approval and enters judgment in this case pursuant to the terms of the settlement.

5. 9:00 AM CASE NUMBER: C23-01537

CASE NAME: KATHERINE HART VS. DAVID SMITH

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MATHEW RUSSELL, ESQ.**

FILED BY: HART, KATHERINE

TENTATIVE RULING:

Based upon the breakdown in communication in the attorney-client relationship the court grants counsel's request to be relieved. The order is effective upon the filing of the proof of service of the signed order upon the client.

6. 9:00 AM CASE NUMBER: C24-02275

CASE NAME: DIDAR SINGH VS. KULVINDER SINGH PANNU

***HEARING ON MOTION IN RE: REINSTATE TEMPORARY RESTRAINING ORDER AND PRELIMINARY INJUNCTION**

FILED BY: SINGH, DIDAR

TENTATIVE RULING:

Before the Court is Plaintiff Didar Singh's Motion to Reinstate Temporary Restraining Order and Preliminary Injunction.

Defendants' Request for Judicial Notice is granted. (Cal. Evid. Code § 452 (d).) While the RJN indicated that the documents sought to be noticed were attached, no documents were actually attached to the filed version of the RJN. As the documents were all filings in this matter, the Court had access to them. Counsel should ensure all documents are properly filed.

Factual and Procedural Background

On August 22, 2024, Defendant Kulvinder Singh Pannu obtained a Temporary Restraining Order against Plaintiff Didar Singh preventing Plaintiff from contacting him or going to the Sikh Center of the San Francisco Bay Area, El Sobrante Gurdwara Sahib ("Sikh Center") – case number N24-1525.

Plaintiff filed his complaint in the instant matter on August 27, 2024, alleging five causes of action: (1) violation of civil and religious rights; (2) defamation; (3) intentional infliction of emotional distress; (4) breach of fiduciary duty; and (5) declaratory relief.

On September 9, 2024, Plaintiff appeared *ex parte* seeking a temporary restraining order ("TRO") and an order to show cause regarding a preliminary injunction restraining Defendants from prohibiting or interfering with Plaintiff's access to the Sikh Center and related actions by Defendants. The Court granted the TRO and scheduled a hearing relating to the preliminary injunction.

On September 13, 2024, Defendants appeared *ex parte* seeking an order vacating the TRO. The Court granted the *ex parte* application, dissolving the TRO issued on September 9 "immediately." Thereafter, the parties briefed the issues related to the preliminary injunction. On October 25, 2024, the Court issued its Order: "The OSC re Preliminary Injunction is discharged and deemed moot. The temporary restraining order was vacated on 9/13/24."

On February 7, 2025, the civil restraining order issued in the 1525 matter was vacated. Four months later, on June 9, 2025, Plaintiff filed the instant motion to "reinstate" the TRO originally issued in this

matter and vacated four days later.

Initial Considerations

“[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. R. Ct. 3.1110 (f)(4) emphasis added.)

Plaintiff’s counsel’s declaration in support of his Motion attaches four separate exhibits but fails to include bookmarks. Counsel is reminded to comply with the Rules of Court going forward.

Analysis

Plaintiff indicates that he is seeking “reinstatement of the Temporary Restraining Order and Preliminary Injunction.” The Court notes that a Preliminary Injunction was never issued in this matter. Instead, a TRO was granted on September 9 and dissolved on September 13, 2024. On October 25, 2024, the Court discharged the OSC regarding the preliminary injunction. In other words, a preliminary injunction was never entered. As such, it appears that Plaintiff’s motion to ‘reinstate’ is limited to attempting to ‘reinstate’ the TRO – which was dissolved in response to Defendant’s *ex parte* application on September 13, 2024.

Plaintiff brings his motion under California Code of Civil Procedure section 533, which states:

In any action, the court may on notice modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order.

Section 533 is clear that under that statute a court may “modify or dissolve an injunction or temporary restraining order” upon a proper showing. The statute only gives the Court the authority to modify or dissolve an existing TRO or injunction. There is no indication that the Court may ‘reinstate’ a TRO which was dissolved over one year prior.

Instead, it appears that Plaintiff is seeking to have a new TRO or preliminary injunction entered. In deciding whether to issue a preliminary injunction, a court must weigh two “interrelated” factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. (*Butt v. State of California* (1992) 4 Cal. 4th 668, 677-678.)

The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O’Connell v. Sup.Ct. (Valenzuela)* (2006) 141 Cal. 4th 1452, 1481.) “A plaintiff seeking a preliminary injunction bears the burden of **presenting facts** which show a reasonable probability that he will succeed on the merits.” (*Citizens for Better Streets v. Board of Supervisors* (2004) 117 Cal.App.4th 1, 6, emphasis added.) “To obtain a preliminary injunction, Plaintiff bears the burden of showing that he has a reasonable probability of prevailing on the merits of his claims, that it has no adequate legal remedy, and that he will suffer irreparable injury if the requested

injunctive relief does not issue.”

Plaintiff presents no evidence to support his motion. For example, there is no declaration from Plaintiff explaining how he will suffer irreparable injury if an injunction does not issue. As noted by Defendants, there “are no new declarations, no new factual allegations, no evidence of recent threats, and no indication that any Defendant has acted improperly since the original TRO was dissolved.” (Opp. at 5:8-9.) There is no declaration from Plaintiff at all. Instead, there is a declaration from Plaintiff’s counsel which merely attaches copies of prior court filings and orders.

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) Even if statements in the points and authorities could be considered evidence, “the statements contained in the memorandum lack foundation and could not have been used by the court to evaluate the consideration.” (*Brehm Cmty. v. Superior Court* (2001) 88 Cal.App.4th 730, 735.)

While Plaintiff did file a declaration in support of the original *ex parte* application in September 2024, Plaintiff does not even reference that document as support for the current motion. Even if he had, the Court would not consider it given that over one year has passed since that time. Plaintiff would need to provide a current declaration explaining his position as of the time of the filing of the instant motion.

In the opposition papers, Defendants set forth several legal arguments showing that Plaintiff is not likely to prevail on the merits – thereby undermining any request for a TRO. Plaintiff’s reply, which is optional, was due on or before Friday, December 12. (Cal. Code Civ. Proc. § 1005.) No reply was filed by that date, and no reply has been filed as of the drafting of this tentative ruling.

It is accepted that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to respond to Defendant’s arguments, Plaintiff concedes the contentions and arguments in the opposition papers.

Conclusion

Plaintiff’s Motion is **denied**.

7. 9:00 AM CASE NUMBER: C24-03015

CASE NAME: ALY SY VS. ZUBAIR ALI

***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS-COMPLAINT AGAINST CROSS-COMPLAINANT
FILED BY:**

TENTATIVE RULING:

The unopposed motion for leave to file a Cross-Complaint for indemnity and contribution against

Defendant Zubiari Sadiz and ROES 1-20 is granted.

8. 9:00 AM CASE NUMBER: C25-00585
CASE NAME: VICTOR MARTINEZ VS. ANTIOCH DUNES HEALTHCARE, LLC
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: ANTIOCH DUNES HEALTHCARE, LLC
TENTATIVE RULING:

Introduction

Before the Court is Defendant Antioch Dunes Healthcare, LLC dba Delta View Post Acute's ("Defendant" or "Delta View") motion for an order compelling binding arbitration of all disputes between Plaintiffs Victor Martinez by and through his Successor-in-Interest, Carmen Martinez and Carmen Martinez, individually and the Defendants, on the grounds that there is a contractual agreement to arbitrate such disputes. Additionally, Defendant requests that the Court stay the instant action as to all Defendants. The Motion relates to Plaintiff's Complaint for (1) Private Attorneys General Act (Lab. Code § 2698, et seq.).

For the reasons described below, Antioch Dunes Healthcare, LLC dba Delta View Post Acute's Motion to Compel Arbitration is **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

Procedural Background

On March 3, 2024, Plaintiffs Victor Martinez by and through his Successor-in-Interest, Carmen Martinez and Carmen Martinez, individually, filed a Complaint for Damages against Defendant Antioch Dunes Healthcare, LLC dba Delta View Post Acute for the following causes of actions: 1. Statutory Elder Abuse/Neglect; 2. Negligence; 3. Violation of Health & Safety Code § 1430; and 4. Wrongful Death. (Declaration of Herman Singh (hereinafter "Singh Decl."), ¶ 2, Ex. A.)

Between March 17, 2025, and March 27, 2025, Defense counsel met and conferred with Plaintiffs' counsel regarding the existence of a valid arbitration agreement. In subsequent communications, counsel for the parties were unable to come to an agreement regarding the propriety of arbitration in this matter. (Singh Decl., ¶ 3.)

Plaintiff filed their Complaint on March 3, 2025. Defendant promptly filed its Petition to Compel Arbitration on April 4, 2025. (Request for Judicial Notice No. 1; Singh Decl., ¶ 4.) Defendant notified Plaintiff that Defendant would be withdrawing and refile the Petition on August 1, 2025, and refiled the Petition on August 8, 2025. (RJN No. 1; Singh Decl., ¶ 7.) No discovery or any pursuit of litigation occurred during the seven days it took to refile the Motion to Compel Arbitration.

Factual Background

This case involves numerous allegations of neglect suffered by plaintiff Victor Martinez (hereinafter "Plaintiff" or "Mr. Martinez") while he resided at defendant skilled nursing facility Antioch Dunes

Healthcare, LLC dba Delta View Post Acute (hereinafter “Delta View”) from March 27, 2024, to April 17, 2024. Specifically, Plaintiffs allege Defendant Delta View neglected Decedent and allowed him to suffer several pressure sores and failed to supervise him leading to him suffering aspiration pneumonia and dehydration, causing septic shock. Decedent was unable to recover from these injuries and died prematurely. Decedent was initially admitted to Delta View for a five-day respite care stay, from September 7, 2023, to September 12, 2023. At that time, there were no plans for him to be readmitted to Delta View, and he was discharged to a family member’s home where he remained until he was hospitalized on March 22, 2024. Decedent was then transferred from the hospital to Delta View, and it is this March-April 2024 admission that gives rise to the facts of this case.

On August 19, 2016, Victor Martinez executed a Durable Power of Attorney for Financial Management granting Lissette D. Raygoza and Carmen J. Martinez, jointly, and independently, authority to make significant decisions of his behalf. (Declaration of Sabrina Carrasco (Carrasco Decl.), ¶ 5, Ex. A, p. 2, ¶ 3.) The authority became effective immediately and was not contingent of finding of mental incapacity or mental infirmity. (Carrasco Decl., ¶ 5, Ex. A, p. 3, ¶ 7.) Amongst other things, this power of attorney document authorized Ms. Raygoza to take the following actions:

8. Powers of Attorney-in-fact My Attorney-in-fact will have the following power(s): [...]

f. Claims and Litigation Matters To institute, maintain, defend, compromise, arbitrate or otherwise dispose of, any and all actions, suits, attachments or other legal proceedings for or against me. This power includes, but is not limited to, the power to: appear on my behalf, and the power to settle any claim against me in whichever forum or manner my Attorney-in-fact deems prudent, and to receive or pay any resulting settlement. [...]

q. First Additional Power I grant my power of attorney to make my decisions on who caregivers for me, signatures and financial needs. I also want my power of attorney to be my spokesperson.

(Carrasco Decl., ¶ 5, Ex. A, p. 5, ¶ f; p. 8, ¶ q.)

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration “is in essence a suit in equity to compel specific performance of a contract.” (*Cal. Teachers Ass’n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) “A party who files a motion to compel arbitration ‘bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 (“Rosenthal”).)

If the existence of the arbitration agreement is challenged, “the burdens of production shift in a three-step process.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the moving

party meets its burden of proving the existence of a written agreement to arbitrate the dispute but the opposing party disputes the existence of a valid agreement, “then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (Id.) The opposing party meets its burden in several ways, that may include “testify[ing] under oath or declar[ing] under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Id.) “If the opposing party meets its burden, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. (Id.) The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Id.)

Throughout this process, “[t]he trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.) Notwithstanding the burden-shifting that may occur to produce evidence, “[t]he burden of persuasion is always on the moving party to prove the existence of an arbitration agreement by a preponderance of the evidence.” (*Gamboa*, 72 Cal.App.5th, at 164-165.)\

Analysis

Defendant’s Initial Burden

For arbitration to be compelled, the Court need only determine that (1) a valid agreement to arbitrate exists; and (2) the agreement to arbitrate encompasses the dispute at issue. (*Howsam v. Dean Witter Reynolds* (2002) 537 U.S. 79, 84.)

Here, Defendant Delta View provides copies of the 2023 Arbitration Agreement. (RJN Singh Sanctions Decl. Ex. B.)

Defendant asserts that the scope of the Arbitration Agreements was, “It is understood that any and all other disputes, controversies, demands, or claims that relate or arise out of the provision of services by the Facility to Resident, including, but not limited to, any action for injury or death arising from negligence, wrongful death, intentional tort, or statutory causes of action for injury or death arising from negligence, wrongful death, intentional tort, or statutory causes of action, including, but not limited to, the Elder Abuse and Dependent Adult Civil Protection Act, the Unfair Competition Act, the Consumer Legal Remedies Act, and Health & Safety Code Section 1430, will be determined by submission to arbitration as provided by the F.A.A.” between Defendant Delta View and each employee. (Motion pp 4-5; citing Carrasco Decl., ¶ 9 Ex. D, ¶ 1-2.)

Defendant Delta View has met its initial burden to establish the existence of the Arbitration Agreement. Accordingly, the burden now shifts to Plaintiff to present facts showing why it should not be enforced.

Applicability of September 2023 Arbitration Agreement to the March 2024 Stay

Health and Safety Code 1599.651 provides, a person that is readmitted into a skilled nursing facility does not have to resign an admissions agreement but can sign a written statement which lists modifications to the previous admissions agreement. Plaintiff specifically brings up that this rule does not apply to “any person when the physician and surgeon of that person has determined that the

person is unable to understand and sign the written statement because of his or her medical condition.” (Oppo at p. 3: 15-22.) Plaintiff mentions that Health & Safety Code ¶1599.81(b) states, “[a]ll arbitration clauses shall be included on a form separate from the rest of the admission contract.”

Health and Safety Code § 1599.651 governs the signing of contracts of admissions to the same facility where the patient had previously signed a contracts of admissions, while Health and Safety Code § 1599.81 addresses the presentation and execution of arbitration agreements at the time of initial admission, ensuring they are optional and separate from the admission agreement. (Health & Saf. Code, §§ 1599.651, 1599.81.)

Plaintiffs take the stance that a new admissions agreement had to be presented to Mr. Martinez’s legal representative upon his new admission, required Defendant to present another arbitration agreement to Plaintiff when he was admitted to the facility six months later. Plaintiff cites no authority holding that a previously executed arbitration agreement becomes void merely because a facility did not present a duplicate form at a later admission. In other words, the executed arbitration agreement applies to all care and services Mr. Martinez received from the facility.

Arbitrability of Wrongful Death Claim

Plaintiffs argue that because Carmen Martinez, Decedent’s surviving sibling who did not sign any arbitration agreement, is pursuing a wrongful death claim, she cannot be compelled to arbitration under *Holland*. (Oppo at p. 4: 10-24.) The Court is not swayed considering the express language in the subject Arbitration Agreement.

Procedural aspects of the FAA do not apply in state court absent an express provision in the arbitration agreement. (See *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922 [even where agreement specifies FAA governs any disputes, CAA governs procedures where there is a choice of law provision providing that the agreement will be governed by the laws of California].) The California Supreme Court held that parties to an arbitration agreement may, “expressly designate that any arbitration proceeding should move forward under the [F.A.A.’s] procedural provisions rather than under state procedural law.” (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Ca1.4th 376, 394.)

Here, Paragraph 2 of the Agreement specifically states, “It is understood that any and all other disputes, controversies, demands, or claims that relate to or arise out of the provision of services by the Facility to Resident, including, but not limited to, any action, including but not limited to, the Elder Abuse and Dependent Adult Civil Protection Act, the Unfair Competition Act, the Consumer Legal Remedies Act, and Health & Safety Code Section 1430, will be determined by submission to arbitration as provided by the F.A.A.” (Carrasco Decl., Ex. D, ¶ 2.)

The subject Arbitration Agreement also takes the belt and suspenders approach by not only containing a choice of law provision expressly choosing the FAA procedural rules; the Arbitration Agreement also contains a provision that expressly states that California Code of Civil Procedure (“CCP”) shall not govern this Agreement and expressly excludes CCP § 1281.2(c) from the Agreement. (Carrasco Decl., Ex. D, ¶¶ 4-5.)

A motion to compel arbitration is in essence a suit in equity to compel specific performance of a

contract. Here, the Parties expressly agreed that the FAA procedural rules govern the Arbitration Agreement and expressly agree to the exact causes of actions pleaded shall be subject to arbitration. The Court intends to uphold the Arbitration Agreement which the Parties mutually assented to.

Waiver

On April 4, 2025, defendant Delta View filed a Petition to Compel Arbitration. Plaintiffs filed their opposition on July 28, 2025. On July 30, 2025, Defendant's Counsel emailed that they were going to withdraw the opposition considering the novelty of the arguments made in Plaintiff's Opposition. On August 1, 2025, defendant filed a Notice of Withdrawal. On August 8, 2025, Defendant refiled its Petition to Compel Arbitration, which was then scheduled to be heard on December 19, 2025

Defendants acknowledge that refiling the Petition resulted in some delay. However, taking corrective procedural steps to ensure the Court received complete and accurate supporting evidence does not, by itself, constitute waiver. Neither does the act of refiling, for the purpose of properly presenting the arbitration issues. Defendant's withdrawal of its motion to because of new arguments not discussed in the Parties meet and confer efforts, and refiling its motion seven days after withdrawal does not rise to the level of clear and convincing evidence required to establish that Defendants knowingly and intentionally relinquished their contractual right to arbitrate. Ensuring that the Court is properly briefed on the matter before it and refiling of a motion to proceed in the proper forum is consistent with preserving, not abandoning, the right to arbitration.

Authentication of Decedent's Power of Attorney Raygoza's Electronic Signature

A party opposing arbitration by challenging the authenticity of his or her signature "need not *prove* that his or her purported signature is not authentic but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

Lissette Raygoza, the niece of Victor Martinez and Victor Martinez's authorized agent since 2016, in her declaration states that she does, "...not recognize the signature on the arbitration agreement as [hers]. Based on [her] review, [she] believe[s] [her] signature was forged on this document or that this document was snuck into a pile of admission paperwork without any explanation to [her] of what the document was." (Moore Decl., Ex. D Raygoza Decl. at ¶ 6.)

The Court is a bit puzzled about Ms. Raygoza's concern that her signature was forged or that a document was snuck into a pile of paperwork because the arguments seem to apply to a wet signature while the signature at issue is an electronic one.

Regardless, the Court will continue the analysis as if Plaintiff shifted the burden back to Defendant Delta View to authenticate Plaintiff's electronic signature.

2023 Arbitration Agreement

A proponent seeking to authenticate an electronic signature must show the electronic signature "'was the act of the person,'" which could be shown "'in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.'" (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843,

italics omitted; see Civ. Code, § 1633.9, subd. (a).) For example, a party may present evidence that the signatory was required to use a unique, private login and password to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions. (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 53; citing *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1062.)

The evidence here exceeds what courts have deemed sufficient for authentication. Under California law, authentication is satisfied where the signer is the only person with access to the login credentials used to execute the document. Cases have upheld authentication based solely on access to a unique username and password. Here, not only was access restricted to Ms. Raygoza's personal email account, but the system required entry of a unique SMS verification code sent to Ms. Raygoza's personal cell phone. (Carrasco Decl., ¶ 7.) The record shows Ms. Raygoza actively confirmed her correct phone number with Ms. Carrasco in the middle of the signing process, prompting issuance of a new authentication code before she could continue signing. (*Id.*)

Plaintiff does not offer any evidence from Ms. Raygoza herself disputing the authenticity of the signature. Nowhere in Ms. Raygoza's declaration does she claim that the email address used for the OneSpan execution was not her email address, nor does she contend that anyone other than herself had access to that account. Likewise, she does not claim that the phone number to which the SMS verification codes were sent was not her phone number, nor does she state that any other individual had access to her device or her text messages.

The Court finds that Ms. Carrasco's Declaration explaining the two step authentication process that Ms. Raygoza went through to affix her electronic signature was sufficient for Defendant to prove by the preponderance of the evidence the authenticity of Ms. Raygoza's signature.

Stay

Under the FAA, courts must stay an action where "the issue involved in such suit or proceeding is referable to arbitration under an arbitration "agreement." (9 U.S.C § 3.) It is not clear, however, that this provision applies to proceedings in state court. (*Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477, fn. 6 [noting the United States Supreme Court has not held this provision applies to state court proceedings]; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 410 [holding "section 4 of the USAA does not apply in California court" but not deciding whether section 3 applies].)

Under the CAA, courts "may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding." (CCP § 1281.2.) In other circumstances, when a court "has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State," the court "shall ... stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate." (Code of Civil Procedure § 1281.4.)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 ["the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants"]; *Nederlandse Erts-Tankersmaatschappij, N.V. v.*

Isbrandtsen Co. (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court’s inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court would exercise its inherent authority to issue a stay.

Conclusion

Based on the analysis above, Antioch Dunes Healthcare, LLC dba Delta View Post Acute’s Motion to Compel Arbitration is **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

9. 9:00 AM CASE NUMBER: C25-01013
CASE NAME: DYAMON KILLENS VS. YAQUELIN REYES
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: GUARDIAN/KW HILLTOP, LLC
TENTATIVE RULING:

Defendant Guardian/KW Hilltop, LLC’s demurrer to the First Amended Complaint is overruled as to the fifth and seventh causes of action and sustained with leave to amend as to the ninth cause of action. Defendant shall prepare the order and serve notice of entry. Plaintiffs shall have 30 days from service of notice of entry to file an amended complaint, if any.

Background

Plaintiffs Dyamon Killens and Justin Ericsson’s First Amended Complaint (FAC) is based on allegations that certain uninhabitable conditions, including water intrusion and damage, existed during their tenancy at 3400 Richmond Parkway, Apt. 2720, Richmond, California.

Plaintiffs allege they entered into a residential lease agreement for the premises with defendant Guardian/KW Hilltop, LLC on December 16, 2022. Plaintiffs further allege that the alleged uninhabitable conditions in the premises led to, among other things, their alleged wrongful eviction. On April 10, 2025, Plaintiffs filed a complaint against defendants KW, FPI Management, Inc. and Yaquelin Reyes. Following the parties’ meet and confer efforts, Plaintiffs filed the FAC on June 20, 2025, alleging (1) Negligence; (2) Wrongful Eviction; (3) Tenant Harassment in Violation of the Richmond Rent Ordinance; (4) Breach of Contract (against KW); (5) Nuisance; (6) Unfair Business Practices (against KW and defendant FPI Management, Inc.); (7) Trespass; (8) Retaliatory Eviction; and (9) Declaratory and Injunctive Relief.

Guardian/KW Hilltop, LLC (KW) now demurs to the fifth, seventh, and ninth causes of action for failure to state facts sufficient to constitute a cause of action under CCP section 430.10(e).

Standard

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) However, a demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Fifth Cause of Action for Nuisance

CACI 2021 sets forth the essential element of a cause of action for private nuisance as follows:

1. That plaintiff [owned/leased/occupied/controlled] the property;
2. That, by acting or failing to act, defendants created a condition or permitted a condition to exist that [insert one or more of the following:] [was harmful to health;] [or] [was indecent or offensive to the senses;] [or] [was an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property;] [or] [unlawfully obstructed the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway;] [or] [was [a/an] [fire hazard/specify other potentially dangerous condition] to plaintiff's property;] property;]
3. That defendant's conduct in acting or failing to act was [intentional and unreasonable/unintentional, but negligent or reckless]/[the condition that defendant created or permitted to exist was the result of an abnormally dangerous activity]];
4. That this condition substantially interfered with plaintiff's use or enjoyment of her land;
5. That an ordinary person would reasonably be annoyed or disturbed by defendant's conduct;
- [6. That plaintiff did not consent to defendant's conduct;]
7. That plaintiff was harmed;
8. That defendant's conduct was a substantial factor in causing plaintiff's harm; and
9. That the seriousness of the harm outweighs the public benefit of defendant's conduct.

(1 CACI 2021 [2025 ed].)

KW argues that the FAC fails to plead facts to support the essential elements of a private nuisance claim because the FAC does not allege that KW's conduct was intentional and unreasonable or unintentional but negligent or reckless and does not allege that the offending conditions resulted

from an abnormally dangerous activity. KW also argues the FAC fails to state a cause of action because Plaintiffs do not allege that they suffered substantial harm from KW's conduct that outweighs the social utility of KW's conduct.

The court disagrees that the FAC fails to state sufficient facts to support a nuisance cause of action. Plaintiffs allege they were tenants of the premises owned by KW. (FAC at ¶2.) Plaintiffs allege that KW "created conditions that interfered with Plaintiffs' use and enjoyment of their home by failing to correct habitability defects, by refusing to address longstanding water intrusions, by refusing to inspect and remediate portions professionally of the Plaintiffs' home, and by other acts and failures to act that interfered with Plaintiffs' use and enjoyment of their apartment." (FAC ¶ 65.) Plaintiffs allege that these conditions substantially interfered with Plaintiffs' use and enjoyment of their home, and that an ordinary person would reasonably be annoyed or disturbed by the conditions. (FAC ¶¶ 67, 70, 74(c).) Plaintiffs also allege facts from which a jury could conclude that the defendants' actions were "intentional and unreasonable/unintentional, but negligent or reckless." (FAC ¶¶ 11–19, *passim*.) Plaintiffs additionally allege that they did not consent to Defendants' acts or omissions, that Defendants' conduct conferred no public benefit, and that Plaintiffs suffered harm as a result. (FAC ¶¶ 64, 66, 69, 70.)

Accordingly, the demurrer to the fifth cause of action for private nuisance is overruled.

Seventh Cause of Action for Trespass

KW argues the seventh cause of action for trespass fails to state sufficient facts to constitute a cause of action against KW.

Plaintiffs respond that the FAC contains allegations that "Defendants repeatedly entered the Subject Unit without proper notice and without their consent during the period in which Defendants performed piecemeal or abandoned repair attempts. Contractors and management staff arrived unannounced, inspected areas, opened walls, and left exposed construction conditions while Plaintiffs were living inside the home," and that "[t]hese allegations alone satisfy the first form of actionable trespass—unauthorized physical entry." (Opp. 7:27–8:4.)

However, the opposition fails to identify where in the FAC these allegations appear, and the Court is unable to locate them. Rather, the court's review of the FAC reflects only that Defendants entered the unit to make repairs, without alleging that any such entry was unauthorized. Accordingly, Plaintiffs fail to state a viable cause of action for trespass based on the landlord's entry into the unit.

Plaintiff then cites to *Koll-Irvine Ctr. Property Owners Assn. v. County of Orange* (1994) 24 Cal.App.4th 1036, 1041–1042 for the proposition that water intrusion into a dwelling can constitute trespass where, as here, it allegedly results from a defendant's failure to make necessary repairs. (Opp. p. 7.) However, *Koll-Irvine* addressed whether allegations of a feared future catastrophic accident constituted an interference with the use and enjoyment of land sufficient to support a nuisance cause of action at the demurrer stage.

Nevertheless, Plaintiffs' water-intrusion theory may be viable at the pleading stage. "Trespass to property is the unlawful interference with its possession." (*Eton v. Anheuser-Busch Beverage Group*,

Inc. (1996) 50 Cal.App.4th 1301, 1306, citing 5 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 604, p. 704.) A trespass may be accomplished by “the casting of substances or objects upon the plaintiff’s property from without its boundaries.” (*Id.*, citing 75 Am.Jur.2d, Trespass, § 11, p. 15, fn. omitted.)

Here, Plaintiffs allege that their unit suffered water damage due to flooding caused by Defendants’ failure to maintain the premises and refusal to repair the damage, resulting in a substantial interference with Plaintiffs’ use of the premises. The demurrer does not challenge this theory, as it is focused on the sufficiency of Plaintiffs’ allegations concerning the landlord’s entry into the property to make repairs. To the extent the trespass cause of action is duplicative of the nuisance cause of action, Plaintiffs are allowed to plead in the alternative, and KW is not prejudiced by the assertion of overlapping theories at this stage of the proceedings.

Accordingly, KW’s demurrer to the seventh cause of action for trespass is overruled.

Ninth Cause of Action for Declaratory and Injunctive Relief

KW argues that the ninth cause of action for declaratory and injunctive relief fails to state a cause of action because Plaintiffs do not plead an actual and present controversy against KW, given that KW is not an insurer. The court agrees that Plaintiffs fail to state a viable cause of action against KW for declaratory relief.

CCP section 1060 provides that “[a]ny person interested under a ... contract, ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the ... contract.” (*Id.*) In a related statute, CCP section 1061, provides that “[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.” (*Id.*)

Here, the FAC fails to state the cause of action for declaratory and injunctive relief against KW as opposed to KW’s insurer should plaintiff prevail in this action and pursue the insurer for bad faith. The declaratory and injunctive relief cause of action states, in part, as follows:

91. An actual controversy now exists between the Plaintiffs and Defendants in that the Plaintiffs contend they served the Defendants’ insurance companies with a section 999 demand under the California Code of Civil Procedure through their counsel, that the Defendants’ insurance carriers refused to respond within the time permitted to this demand, that the carrier never sought and that the carrier’s bad-faith refusal to respond opens the Defendants’ insurance policies to covered and uncovered claims.

92. Defendants, by and through their insurance companies, deny this.

93. By virtue of the above controversy, the Plaintiffs seek a declaration as to the above and to enjoin Defendants and their insurance companies from contesting that the underlying policies have been opened to uncovered damages as a result of the carrier’s failure to abide by the

Code of Civil Procedure section 999.

Plaintiffs also allege that:

23. On or about August 5, 2024, the Plaintiffs notified the Defendants regarding their claims. Defendants tendered the claim to their carrier. The carrier asked for more than four months of extensions and each time refused to respond by their self-imposed extended deadlines.

24. On January 13, 2025, the Plaintiffs issued a section 999 demand under the California Code of Civil Procedure to the Defendants' carrier. The carrier failed to respond by the deadline. The carrier failed to ask for an extension. The carrier called weeks after the deadline expired and was unaware of the requirements of the section 999 demand despite the clearly marked demand issued by the Plaintiffs.

25. Plaintiffs contend that the Defendants' carrier's failure to respond to the Section 999 demand opens the policy to all damages covered and uncovered, including attorney fees and costs."

By way of background, CCP sections 999 to 999.5 (effective January 1, 2023) are statutes concerning "time-limited demands" which apply to a written offer to settle (1) that is served before filing of a complaint or a demand for arbitration, (2) requires acceptance within a specified time period, and (3) is an offer to settle a cause of action or claim for "personal injury, property damage, bodily injury, or wrongful death" within the limit of the tortfeasor's "automobile, motor vehicle, homeowner or commercial premises liability insurance policies." Under CCP § 999.3.(c), if the insurer does not accept a "time-limited demand," the insurer must "notify the claimant, in writing, of its decision and the basis for its decision" prior to the expiration of the demand, including any extension agreed to by the parties. This written notification of non-acceptance "shall be relevant in any lawsuit alleging extracontractual damages" against the insurer. (*Ibid.*)

Thus, Plaintiffs allege they served Defendants' insurance carriers with a 999 demand and the insurance carriers allegedly failed to respond with the time allowed. (See FAC, ¶¶ 23-24; and ¶¶ 91-93.) Plaintiffs claim these failures "opened the policy to all damages covered and uncovered, including attorney fees and costs" in this action, and they seek a legal declaration that KW's insurer/s will be obligated to pay. (FAC, ¶ 25.)

Plaintiffs' claim for declaratory relief against KW fails. As is evident, there is no contractual relationship between Plaintiffs and KW regarding insurance. Further, there is no actual controversy relating to the legal rights and duties of Plaintiffs and KW, despite the allegation at paragraph 92, because Plaintiffs do not seek a declaration that KW itself will be required to pay "all damages covered and uncovered, including attorney fees and costs," but instead that KW's insurer/s will be obligated to indemnify KW for such amounts.

In its reply brief, KW asserts that while "it is possible" that Plaintiffs can cure the defects in their nuisance and trespass causes of action, their declaratory and injunctive relief cause of action fails because there is no legal authority to support a claim arising under CCP section 999 et seq. against an

insured.

Here, the court agrees that Plaintiffs' position is legally unsupported. Plaintiffs cite no law permitting a trial court, in an action against an insured defendant, to adjudicate an insurer's alleged obligation to pay damages in excess of policy limits based on an alleged violation of CCP section 999, and Plaintiffs offer no explanation as to why existing law should be extended to authorize such relief.

Plaintiffs argued in their opposition "[t]he Court *must* decide this issue at the damages phase of trial, outside the jury's purview, and the Plaintiffs have direct standing to determine their theories of recovery for damages," citing to CCP section 2017.210 and *Haynes v. Farmers Ins. Exchange* (2004) 32 Cal.4th 1198. (See Opp. 3:17-21 [emphasis original].) Neither authority supports Plaintiffs' position. CCP section 2017.210 permits discovery of the existence and contents of liability insurance that may be available to satisfy a judgment; it does not authorize a court to adjudicate insurance coverage or bad faith liability in an action against the insured. *Haynes* involved a declaratory relief action brought directly against a liability insurer, and the issue of standing was neither raised nor analyzed.

Plaintiffs fail to establish an actual and present controversy between themselves and KW sufficient to support declaratory relief under CCP section 1060. Plaintiffs also do not demonstrate that a declaration would be necessary or proper under the circumstances. Therefore, CCP section 1061 provides an independent basis for declining declaratory relief.

Although it is not clear what additional facts Plaintiffs could allege to cure the defect, the court grants leave to amend to afford Plaintiffs an opportunity to attempt to state a cognizable cause of action for declaratory relief against KW. (See *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 ["Liberality in permitting amendment is the rule, if a fair opportunity to correct has not been given."].) Absent new or different factual allegations, the court is skeptical that Plaintiffs can do so.

Disposition

Defendant Guardian/KW Hilltop, LLC's demurrer to the First Amended Complaint is overruled as to the fifth and seventh causes of action and sustained with leave to amend as to the ninth cause of action. Defendant shall prepare the order and serve notice of entry. Plaintiff shall have 30 days from service of notice of entry to file an amended complaint.

10. 9:00 AM CASE NUMBER: C25-01931
CASE NAME: NOEL LINARES VS. THI TRANG NGUYEN
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: LINARES, NOEL
TENTATIVE RULING:

The law requires proof of service of a motion to give notice of the time and date of the hearing as well as the department, if the department is known. (See CCP 1010; California Rules of Court, rule 3.1203.) Here, plaintiff never gave notice of the date, time and time of the motion, nor of the department where the motion would be heard. As such the motion is continued to January 16, 2026, at 9 a.m. so that Plaintiff can give proper notice.

11. 9:00 AM CASE NUMBER: MSC17-01486
CASE NAME: DOSKOCZ VS. ALS
***HEARING ON MOTION IN RE: ENFORCE JUDGMENT AFTER TRIAL**
FILED BY: DOSKOCZ, TERESA
TENTATIVE RULING:

Hearing continued by motion of the court to February 20, 2026, at 9 a.m.

12. 9:00 AM CASE NUMBER: N22-1685
CASE NAME: JINGHUI XU VS. MELVINDER GILL
***HEARING ON MOTION IN RE: DEFAULT JUDGMENT; RECALL AND QUASH WRIT**
FILED BY: GILL, MELVINDER
TENTATIVE RULING:

Denied.

13. 9:00 AM CASE NUMBER: N25-1127
CASE NAME: KEVIN WOODRUFF VS. SECRETARY OF VETERAN AFFAIRS
HEARING ON PETITION IN RE: FOR NUNC PRO TUNC WRIT OF ERROR CORAM NOBIS FOR
EQUITABLE RELIEF.
FILED BY:
TENTATIVE RULING:

Hearing continued to February 20, 2026, at 9:00 a.m.

Judge Danielle Douglas, department 18, recuses herself from this matter.

14. 9:00 AM CASE NUMBER: N25-1127
CASE NAME: KEVIN WOODRUFF VS. SECRETARY OF VETERAN AFFAIRS
HEARING ON DEMURRER TO: PETITION.
FILED BY:
TENTATIVE RULING:

Hearing continued to February 20, 2026, at 9:00 a.m.

Judge Danielle Douglas, department 18, recuses herself from this matter.

15. 9:00 AM CASE NUMBER: N25-1185
CASE NAME: HEZEKIAH GRAY VS. REGISTRAR OF CONTRACTORS, CSLB, DCA
***HEARING ON MOTION IN RE: WRIT OF ADMIN. MANADAMUS**
FILED BY: GRAY, HEZEKIAH KAREEM
TENTATIVE RULING:

Petitioner Hezekiah Kareem Gray dba Freeway Mechanical filed a petition for writ of administrative mandamus under Code of Civil Procedure section 1094.5.

This case arises from construction work performed by Jesse Diaz starting in May 2022 at a

home in Santa Clara. The homeowner paid Diaz approximately \$120,241.20 to do various jobs at the house, however, Diaz did not complete the work and what was done was unsatisfactory. The cost to correct and finish the project is \$158,500.

Diaz told the homeowner that he was licensed under Freeway Mechanical and used Freeway's licensed number. At some point in 2022, Diaz stopped working on the house and did not return the payments. The homeowner terminated Diaz from the project in October 2022. The homeowner never spoke with Petitioner Gray until after Diaz stopped working on the project.

Petitioner had previously received discipline from the Contractors State License Board when his company continued to work on a project during a 7-day suspension in 2013. (Exhibit 5.) The suspension was related to the failure to pay a judgment from the Labor Commissioner and the failure to list that judgment on licensing applications.

The Contractors State License Board began investigating Gray and filed an accusation against him for aiding and abetting an unlicensed person to evade the law under Business and Professions Code section 7114. During the administrative hearing on this matter (case no N2023-282.), the Board added a second cause for employing a person without having workers' compensation coverage. The administrative law judge issued a proposed decision on April 2, 2025, finding that Petitioner had violated both causes included in the accusation. The ALJ's discipline decision was to revoke the contractor's License Number 979656 that was issued to Freeway Mechanic; to prevent Gray from applying for a reissuance of the license or for any new license for four years; and require Gray to pay restitution. The Registrar of Contractors of the Contractors State License Board subsequently agreed with the proposed decision and issued a decision and order against Petitioner (Order No. 2024070424).

Petitioner raises four arguments in this proceeding: (1) the unfairness of Petitioner's trial due to (i) the ALJ's lack of impartiality based on the improper combination of prosecutorial and judicial functions and (ii) the lack of notice due to a belated amendment to the charging document contrary to Gov. Code § 11507; (2) the Registrar's Decision and Order is not supported by adequate findings with respect to the two violations and related restitution and costs; (3) the Registrar's findings are not supported by the evidence; and (4) the Registrar's imposed discipline contrary to the Disciplinary Guidelines.

Standards of Review

When reviewing a writ under section 1094.54, "[t]he inquiry in such a case shall extend to the questions whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence." (Code Civ. Proc., § 1094.5 (b).)

"Where it is claimed that the findings are not supported by the evidence, in cases in which the court is authorized by law to exercise its independent judgment on the evidence, abuse of discretion

is established if the court determines that the findings are not supported by the weight of the evidence.” (Code Civ. Proc., § 1094.5 (c).)

“After an administrative agency imposes discipline on a professional licensee, the trial court to which application for mandate is made exercises its independent judgment on the facts.” (*Griffiths v. Superior Court* (2002) 96 Cal.App.4th 757, 767; *Yazdi v. Dental Bd. of California* (2020) 57 Cal.App.5th 25, 33.) “Under the independent judgment rule, the trial court must weigh the evidence and make its own determination as to whether the administrative findings should be sustained.” (*Yazdi, supra*, 57 Cal.App.5th at 32.)

In *Li v. Superior Court* (2021) 69 Cal.App.5th 836, the court held that when a trial court is exercising its independent judgment, it should “account for the standard of proof in the underlying administrative proceeding when exercising its independent judgment in reviewing the sufficiency of the evidence supporting the administrative agency's findings.” (*Li v. Superior Court* (2021) 69 Cal.App.5th 836, 865.) Here, that means the Court should exercise its independent judgment “*in the context of* whether the findings are supported by clear and convincing evidence, rather than a mere preponderance of the evidence...” (*Li v. Superior Court* (2021) 69 Cal.App.5th 836, 865.)

There is some conflict between *Yarzdi* and *Li* regarding whether the trial court should exercise its independent judgment by considering if there is a preponderance of the evidence or clear and convincing evidence. The Court finds that the standard expressed in *Li* is correct and therefore, the Court must exercise its independent judgment by weighing the evidence to determine if the findings are supported by clear and convincing evidence.

“In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (*Fukuda, supra*, 20 Cal.4th at p. 817.) Further, “considerable weight should be given to the findings of experienced administrative bodies made after a full and formal hearing, especially in cases involving technical and scientific evidence.” (*Id.* at p. 812.)

When considering credibility, “[i]f the factual basis for the decision includes a determination based substantially on the credibility of a witness, the statement shall identify any specific evidence of the observed demeanor, manner, or attitude of the witness that supports the determination, and on judicial review the court shall give great weight to the determination to the extent the determination identifies the observed demeanor, manner, or attitude of the witness that supports it.” (Gov. Code, § 11425.50 (b).) Where the credibility standard does not meet section 11425.50, “the trial court has the power and responsibility to weigh the evidence at the administrative hearing and to make its own determination of the credibility of witnesses.” [Citation.]” (*Barber v. Long Beach Civil Service Com.* (1996) 45 Cal.App.4th 652, 658 (emphasis removed).)

“When the superior court has conducted its review and has concluded that the agency properly found misconduct, the imposition of the appropriate penalty for that misconduct is left to the sound discretion of the agency. ‘The penalty imposed by an administrative body will not be disturbed in mandamus proceedings unless an abuse of discretion is demonstrated.’ [Citation.]”

(*Kazensky v. City of Merced* (1998) 65 Cal.App.4th 44, 53.) “ ‘The discipline imposed will not be disturbed unless it is shown to have been a manifest abuse of discretion.’ [Citation.]” (*Id.* at 54; see also, *Yazdi, supra*, 57 Cal.App.5th at 34.)

Petitioner’s reliance on *Fulga v. Registrar of Contrs.* (2022) 2022 Cal. Super. LEXIS 55168 is improper. *Fulga* is an unpublished trial court opinion. That being said, the Court considered the authorities discussed in *Fulga*.

Fair Trial

Petitioner argues that he was deprived of a fair trial because the ALJ provided directions to the Agency on how to add a charge to the accusations.

“The adjudicative function shall be separated from the investigative, prosecutorial, and advocacy functions within the Agency as provided in Section 11425.30.” (Gov. Code, § 11425.10 (a)(4).) “California courts, too, recognize that the combination of prosecutorial and adjudicative functions is the most problematic combination for procedural due process purposes. [Citation.]” (*Nightlife Partners, Ltd. v. City of Beverly Hills* (2003) 108 Cal.App.4th 81, 93.)

The Government Code states that “At any time before the matter is submitted for decision, the agency may file, or permit the filing of, an amended or supplemental accusation... . All parties shall be notified of the filing. If the amended or supplemental accusation... presents new charges, the agency shall afford the respondent a reasonable opportunity to prepare his or her defense to the new charges, but he or she shall not be entitled to file a further pleading unless the agency in its discretion so orders. Any new charges shall be deemed controverted, and any objections to the amended or supplemental accusation...may be made orally and shall be noted in the record.” (Gov. Code, § 11507.)

Here, when the hearing started, the charge against Petitioner was aiding and abetting an unlicensed person. After the conclusion of testimony, the agency made an oral motion to add a new charge (Business and Professions Code section 7125.4) to the First Amended Accusation. After listening to arguments from both sides, the ALJ stated that it would allow the amendment, but offered Petitioner additional time to respond. Petitioner declined the offer of additional time. (Transcript 162-165.)

The ALJ then told the Agency “you know what to do with that”. The Agency responded “No, I don’t.” The ALJ then responded “I would like you to – let’s do this. I would like you to file a Second Amended Accusation.” (Transcript 165:7-13.)

Petitioner argues that the ALJ violated fundamental notions of administrative law and procedural due process by advising the Agency on how to amend the accusation. Here, the ALJ provided clarity on the procedural method of amending the accusation *after* the Agency made an oral motion to amend. The Court finds that the ALJ did not improperly combine prosecutorial and adjudicative functions.

Petitioner also argues that after the ALJ decided to allow the amendment, the ALJ did not give

Petitioner a reasonable opportunity to prepare a defense to the new charge. The ALJ offered Petitioner additional time, but Petitioner declined. Petitioner argues that the additional time would have been futile because the amendment occurred after the conclusion of the evidence. Petitioner has not shown the additional time was futile. The Court finds that section 11507 was met here and therefore there was no violation regarding the addition of the new charge.

Findings Supported by the Evidence

Petitioner challenges the ALJ's findings as to both violations, section 7125.4 (workers' compensation) and section 7114 (aiding and abetting).

Workers' Compensation Insurance

Licensed contractors are subject to discipline for "the employment of a person subject to coverage under the workers' compensation laws without maintaining coverage for that person . . ." (Bus. & Prof. Code § 7125.4(a).) In general, a licensed contractor must have workers' compensation insurance unless the contractor has no employees. (Bus. & Prof. Code § 7125(a), (b).)

Petitioner argues that the ALJ did not make all necessary findings to support a charge here, including that there were no findings about employment or how the workers' compensation laws were triggered to cover Diaz.

Here, the ALJ found that Petitioner violated section 7125.4(a) based upon findings 18 and 19. (ALJ Decision p.12.) Items 18 and 19 discuss Petitioner's testimony, where he testified that Diaz did two jobs for Done Right using Petitioner's license number. Petitioner testified that Diaz was representing him on the first job. For the first job, Done Right requested Petitioner's license, liability insurance and a W-9, which Petitioner provided. Done Right paid Petitioner for these jobs and then Petitioner paid Diaz cash. For both of these jobs, Petitioner did not attend the jobsite, but followed up with Done Right on at least one of the jobs to make sure the work done by Diaz was done correctly. Petitioner did not maintain worker's compensation insurance for Diaz. (ALJ Decision p.8-9.) These factual findings by the ALJ are consistent with Petitioner's testimony at the hearing.

The Court also finds that Petitioner's testimony regarding the Done Right jobs and his arrangement with Diaz are sufficient to show that Diaz was Petitioner's employee. Petitioner gave Diaz all the necessary information about Petitioner's contracting business, including license number, liability insurance and W-9. Further, Petitioner received payment from Done Right, took a portion of the payment, and provided the remainder to Diaz. The evidence is also sufficient to show that Petitioner was required to have workers' compensation insurance for his employees, which would have included Diaz, but that Petitioner did not have workers' compensation insurance during the relevant time period.

The Court finds that there is clear and convincing evidence that Petitioner violated Business and Professions Code section 7125.4(a) by failing to have workers' compensation insurance for Diaz while Diaz worked on the Done Right jobs. Therefore, the Court also finds that the conclusion by the

Registrar that Petitioner violated section 7125.4(a) is supported by the findings and evidence.

Aiding and Abetting

“Aiding or abetting an unlicensed person to evade the provisions of this chapter [. . .] or allowing one’s license to be used by an unlicensed person [. . .] with the intent to evade the provisions of this chapter constitutes a cause for disciplinary action.” (Bus. & Prof. Code § 7114(a).)

Petitioner argues that the ALJ used the wrong standard for aiding and abetting. There is no further definition of the term included in section 7000, et seq.

When deciding the amount of knowledge required, the ALJ looked to *James v. Board of Dental Examiners* (1985) 172 Cal.App.3d 1096. There the court noted that “in cases involving aiding and abetting an unlicensed person to practice dentistry, aiding and abetting implies knowledge. (*Winning v. Board of Dental Examiners* (1931) 114 Cal.App. 658, 663.)” (*James, supra*, 172 Cal.App.3d at 1108-1109.) In *Winning*, the court found that a licensed dentist was found to have aided and abet an unlicensed dental practice where the licensed dentist knew the individual was unlicensed and permitted him to use a dental office and dental equipment that the licensed dentist controlled.

In their opposition, the Agency relies on *Upasani v. State Farm General Ins. Co.* (2014) 227 Cal.App.4th 509, 519. There the court explained that “The words aid and abet as thus used have a well understood meaning and may fairly be construed to imply an intentional participation *with knowledge of the object to be attained*. A defendant who acts with actual knowledge of the intentional wrong to be committed and provides substantial assistance to the primary wrongdoer is not an accidental participant in the enterprise.” (*Upasani v. State Farm General Ins. Co.* (2014) 227 Cal.App.4th 509, 519 (internal citations and quotation marks omitted).)

Petitioner argues that *James* is not applicable because that court considered the statute related to dentistry, Business and Professions Code section 1680. Further, Petitioner argues that in both the civil and criminal contexts, aiding and abetting requires more than knowledge. In the civil context, aiding and abetting requires knowledge of the intended tort and that the defendant gave substantial assistance or encouragement to the bad actor. The jury instructions also state that mere knowledge of the tort being committed and the failure to prevent it does not constitute aiding and abetting. (CACI no. 3610.) In the criminal context, aiding and abetting includes that the defendant knew that the perpetrator intended to commit the crime; the defendant intended to aid and abet the perpetrator in committing the crime; and the defendant’s words or conduct did in fact aid and abet the perpetrator’s commission of the crime. (CALCRIM no. 401.)

The Court finds merit to Petitioner’s argument that aiding and abetting requires something more than knowledge of the unlicensed practice and the failure to stop the unlicensed practice. Under either the civil or criminal standard, aiding and abetting requires knowledge of the unlicensed practice plus some sort of assistance.

Here, the evidence shows that in 2021 and January 2022, Petitioner agreed to let Diaz work under his license for two jobs involving Done Right. Petitioner knew that Diaz did not have his own

license. Petitioner's actions in those jobs might be sufficient to show the type of assistance required for aiding and abetting, such as providing all requested documentation (including a picture of the driver's licenses, insurance information and W9) and receiving payment from Done Right and providing a portion of that payment to Diaz.

In contrast to the work with Done Right, there is no evidence that Petitioner did anything to help Diaz on the job involving the Homeowner, which started in May 2022. The evidence does not show that Petitioner helped Diaz obtain the contract, do work on the Homeowner's house or helped Diaz process payments from the Homeowner.

Further, Petitioner testified that he started receiving complaints from dissatisfied homeowners about Diaz's unlicensed work after three or four months. Originally, he testified that this was early 2021, but later clarified that it was in mid, early 2022. (Transcript 78:14-80:2; 126:2-15; 128:2-11; 142:11-18.) Petitioner testified that once he learned that Diaz was using his license on other jobs, he contacted the CSLB office for advice and then called Diaz asking him to stop. Petitioner then learned that Diaz was still using his license so he submitted a nonpermission declaration to the CSLB in August 2022. (Transcript 81:9-21, 111:22-113:24; Exhibit L.) This conduct shows actions to stop Diaz.

The Court finds that the decision that Petitioner aided and abetting Diaz in doing unlicensed work at the Homeowner's property is not supported by the findings because there is no finding that Petitioner helped or assisted Diaz in regard to the Homeowner's project. Further, the evidence presented does not support such a finding.

Discipline Decision

The Court finds that the charge for violation of Business and Professions Code section 7114(a) is not supported by the evidence and therefore, the Registrar's disciplinary decisions are also not supported by the record.

Conclusion

The Court finds that the evidence supports the finding as to a violation of Business and Professions Code section 7125.4(a). The Court also finds that the evidence does not support a finding of a violation of Business and Professions Code section 7114(a) and therefore, the Registrar abused its discretion. Therefore, **the Court grants the writ.**

This matter is remanded to the Registrar with instructions to vacate the portion of its decision and order finding a violation of section 7114(a) and vacate the disciplinary findings. The Registrar shall reconsider the disciplinary findings and enter new disciplinary findings based upon the violation of 7125.4(a).

The parties shall meet and confer on the time needed to file a writ return. Petitioner shall prepare a proposed writ consistent with this ruling.

16. 9:01 AM CASE NUMBER: C24-02991
CASE NAME: ROSALYN NAVAL-ZAHNER VS. JOELLE SCIMIA
*HEARING ON MOTION FOR DISCOVERY COMPEL JOELLE MARY SCIMIA AMENDED RESPONSES TO
FORM INTEROGS, SET 1
FILED BY: NAVAL-ZAHNER, ROSALYN A.
TENTATIVE RULING:

Continued on the court's own motion to December 26, 2025, at 9 am.

17. 9:01 AM CASE NUMBER: C24-02991
CASE NAME: ROSALYN NAVAL-ZAHNER VS. JOELLE SCIMIA
*HEARING ON MOTION FOR DISCOVERY COMPEL JOELLE MARY SCIMIA AMENDED RESPONSES TO
REQUEST FOR ADMISSIONS
FILED BY: NAVAL-ZAHNER, ROSALYN A.
TENTATIVE RULING:

Continued on the court's own motion to December 26, 2025, at 9 am.

18. 9:01 AM CASE NUMBER: C24-02991
CASE NAME: ROSALYN NAVAL-ZAHNER VS. JOELLE SCIMIA
*HEARING ON MOTION FOR DISCOVERY COMPEL JOELLE MARY SCIMIA AMENDED RESPONSES TO
PROD OF DOCS; SET 1
FILED BY: NAVAL-ZAHNER, ROSALYN A.
TENTATIVE RULING:

Continued on the court's own motion to December 26, 2025, at 9 am.

19. 9:01 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
*HEARING ON MOTION IN RE: PROTECTIVE ORDER/TERMINATING SANCTIONS
FILED BY:
TENTATIVE RULING:

Moot.

20. 9:01 AM CASE NUMBER: C22-00901
CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH
*HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION AND PROD OF DOCS
FILED BY: SALEHOMOUM, MOJDEH
TENTATIVE RULING:

Hearing continued by the court to January 9, 2026, at 9 a.m. The opposition to the motion is due January 2, 2026.